

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
JOHN PERKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK
and POLICE OFFICERS JOHN DOE #1-4, (the names "John
Doe" being fictitious as the true names are presently unknown),
individually and in their official capacity as New York City Police
Officers,

Defendants.
-----X

Index No.: _____

Date Purchased: _____

SUMMONS

Plaintiff designates Kings
County as the place of trial.

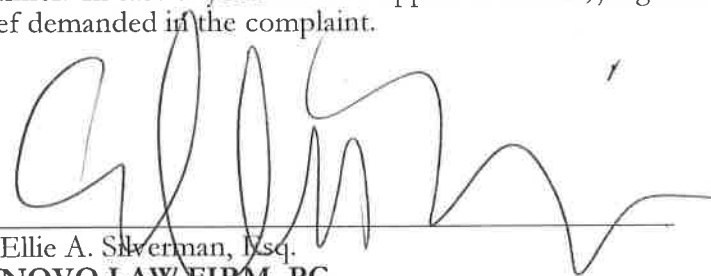
The basis of venue is:
Place of Occurrence

Plaintiff resides at:
24 Maxie Court
Staten Island, NY 10304
County of Richmond

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 22, 2016



Ellie A. Silverman, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
JOHN PERKINS
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 15-5875

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007
2. **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724)**, NYPD, 120th Precinct, 78 Richmond Terrace, Staten Island, New York 10301
3. **SERGEANT GOLDEN DERRICK**, NYPD, 120th Precinct, 78 Richmond Terrace, Staten Island, New York 10301

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

JOHN PERKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.

Index No.: _____

Date Purchased: _____

**VERIFIED
COMPLAINT**

Plaintiff **JOHN PERKINS** by his attorneys **NOVO LAW FIRM, PC** complaining of Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **JOHN PERKINS** was, and still is, an individual residing at 24 Maxie Court, Staten Island, County of Richmond, State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to

the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by **NEW YORK CITY POLICE DEPARTMENT**.

4. Defendants **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant **THE CITY OF NEW YORK** were acting for, and on behalf of, and with the power and authority vested in them by Defendant **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. On May 16, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. Pursuant to General Municipal Law § 50(h), a hearing was held on November 7, 2016 at the office of a designated agent.

FACTS

8. Plaintiff **JOHN PERKINS** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

9. On or about December 3, 2015, at approximately 11:00 A.M., Plaintiff **JOHN PERKINS** was a lawful citizen at or near premises located at 24 Maxie Court located in the County of Richmond, City of New York and State of New York when he became the victim police retaliation and/or police misconduct.
10. At the time and place of occurrence, Plaintiff **JOHN PERKINS** was lawfully on the above-mentioned premises as the known landlord of the property.
11. At the time and place of occurrence, Plaintiff **JOHN PERKINS** was the lawful resident of the abovementioned-premises.
12. Mr. Perkins had been the lawful owner and landlord of 24 Maxie Court since the year of 2007.
13. Plaintiff **JOHN PERKINS** was assaulted, battered, falsely arrested, maliciously prosecuted and became a victim of malicious and sadistic force.
14. At the aforementioned location and time, Mr. Perkins was threatened, chased and charged by the tenant, Ms. Jasmine Martinez who had been living in the downstairs apartment for approximately six (6) months prior to this date.

Upon information and belief, at the aforementioned location and time, Mr. Perkins became a victim of violence, when Ms. Martinez and said tenant's alleged boyfriend, Mr. William Thomas viciously attacked him.
15. Upon information and belief, as a result of said attack Plaintiff **JOHN PERKINS** immediately contacted police at 911 to seek help and protection from Ms. Martinez and Mr. Thomas.
16. On the 911 call and upon information and belief, Mr. Perkins identified himself as the owner and landlord of the aforesaid premises and begged for police assistance.
17. Upon information and belief, Defendants **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** responded to plaintiff's call and arrived to the scene.

18. Upon information and belief, upon arrival said Defendants upon arrival, without reasonable suspicion and without any probable cause to justify respondents' actions, improperly stopped, unlawfully searched, unlawfully handcuffed and forced Plaintiff into police car.
19. Upon information and belief, Plaintiff's statements that he is a victim of the violence were ignored.
20. Upon information and belief, Plaintiff's pleas for medical assistance were denied or otherwise ignored.
21. Upon information and belief, at the scene, Plaintiff did not receive medical assistance for his bleeding hands with open knife wounds.
22. Upon information and belief, at the scene, Plaintiff did not receive medical assistance for his aggravated and exacerbated agonizing pain in his back.
23. Upon information and belief, Plaintiff **JOHN PERKINS**'s hands were handcuffed when he was forced into a back seat of the police car.
24. Upon information and belief, Plaintiff's statements and pleas about prior surgery on his back and the immense pain the uncomfortable position is causing to his back were ignored by arresting officers.
25. Upon information and belief, Ms. Martinez also injured Mr. Thomas during their combined attack on Plaintiff **JOHN PERKINS**.
26. Upon information and belief, Mr. Perkins had to endure pain sitting in police car in uncomfortable position, with his bleeding hands handcuffed behind his back, while Defendants **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** were tending to and getting medical assistance for Plaintiff's co- attacker, Mr. Thomas.
27. Thus, Plaintiff **JOHN PERKINS** was clearly denied proper medical attention and treatment.
28. At no time did Plaintiff **JOHN PERKINS** resist arrest or disobey the arresting officers' commands and upon information and belief, he was never charged with such crime.

29. Upon information and belief, Mr. Perkins presented proper identification while at the scene, proving that he was the landlord and that he was the owner of the property.
30. Upon information and belief, after spending approximately forty (40) minutes in police car, Mr. Perkins was transported to the 120th Precinct.
31. Upon information and belief, and while in the Precinct, only and until the attempts to take Plaintiff's fingerprints failed due to the fact that his wounds were still bleeding, did medical personnel get called by Defendants.
32. Upon information and belief, Plaintiff **JOHN PERKINS** was transported to Richmond University Medical Center, where he finally received medical attention for his injuries.
33. Upon information and belief, Mr. Perkins was rear-cuffed throughout his transportation to Hospital and while he was receiving medical attention.
34. Upon information and belief, Mr. Perkins and the escorting officers were given specific medical instructions regarding changing Mr. Perkins' dressings on his hands.
35. Upon information and belief, the escorting police officers denied and ignored and otherwise refused to follow the hospital's medical directives upon returning to the Precinct.
36. As a result, proper procedures and protocols were ignored and not followed by Defendants.
37. Upon information and belief, Plaintiff **JOHN PERKINS** was transported back to 120th Precinct where he was fingerprinted, photographed and placed in a dirty, infested holding cell.
38. Upon information and belief, Defendants **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724)**, **SERGEANT GOLDEN DERRICK** and **POLICE OFFICERS JOHN DOE #1-4** denied and ignored his requests to make a phone call and denied all requests to call his attorney.
39. After spending over twenty-four (24) hours in a cell of the 120th Precinct, Plaintiff **JOHN PERKINS** at or around 1:00PM was transported to Staten Island Criminal Court, where he was brought in front of the Judge, once again processed, fingerprinted, photographed and placed into a dirty, infested holding cell.

40. Upon information and belief, Mr. Perkins spent in said holding cell more than twelve (12) hours awaiting transportation to Rikers Island.
41. Upon information and belief, at or around 02:00AM Mr. Perkins was transported to Rikers Island and placed into overcrowded "Ball Pen", where he spent over thirty four (34) hours, without being able to sleep or sit down.
42. Upon information and belief, on December 6, 2015 Plaintiff **JOHN PERKINS** was transferred to General Housing in Rikers Island, where he was held for additional two (2) days.
43. On December 8, 2015 Mr. Perkins was transferred to Staten Island Criminal Court and at or around 1:00PM was released without seeing a judge.
44. Plaintiff **JOHN PERKINS** was held in custody for total of over One Hundred Forty Two (142) hours.
45. Plaintiff **JOHN PERKINS** had to attend several more Court appearances.
46. On April 26, 2016 all charges against Plaintiff **JOHN PERKINS** were dismissed and case was sealed.
47. Said police misconduct violated the Civil Rights of Plaintiff **JOHN PERKINS**.
48. There is no question that this ordeal has greatly affected him mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff **JOHN PERKINS** has suffered substantial actual damages including and not limited to, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD
#1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-

49. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
50. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
51. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DERELICTION OF DUTY, DELIBERATE INDIFFERENCE
and FAILURE TO INTERCEDE BY DEFENDANTS THE CITY OF NEW YORK,
POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN
DERRICK and POLICE OFFICERS JOHN DOE #1-4

52. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
53. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
54. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
55. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.

56. At the time of the incidents, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** were observing and aware of the wrongful acts against Plaintiff.
57. At the time of the incident, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** neglected to intervene on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.
58. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
59. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.
60. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS

61. Courts have held that continuous and coercive harassment *can* establish an IIED cause of action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678-679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v. Fischbein Oliveri Rozenholc & Badillo*, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986)(baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living

conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where “[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff’s conduct or discuss the basis of those complaints with others.”).

62. A timely Notice of Claim was filed with the City of New York.
63. Because many of these “last actionable acts” occurred within the statute of limitations period, the action is not time-barred. *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under general principles of New York law, the statute of limitations “ ‘runs from the commission of the last wrongful act.’ ”)(citations omitted).
64. Hon. Denise L. Cote of this district recently reached a similar conclusion on this issue. *Bonner v. Guccione*, 94 Civ. 7735, slip. op. at 7–15, 1996 WL 22355 (S.D.N.Y. January 17, 1996)(holding where last act of an uninterrupted course of actionable conduct falls within statute of limitations, plaintiff permitted to assert IIED claim for entire course of conduct, even those acts beyond the statute of limitations). *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under New York law where certain continuous wrongs are alleged, the last wrongful act triggers the statute of limitations).
65. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
66. Under the color of state law, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
67. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the

continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.

68. The emotional harm and/or distress continue to present day.

69. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.

70. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.

71. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE

72. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

73. Upon information and belief, a Notice of Claim was timely filed against the City.

74. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.

75. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983

AND
NEW YORK STATE CLAIM OF MALICIOUS PROSECUTION

77. Plaintiff **JOHN PERKINS** repeats and reiterates the allegations set forth in the foregoing

paragraphs with the same force and effect as though fully stated herein.

78. Defendants' actions with regard to the institution and maintenance of the criminal prosecution were committed wantonly and with a reckless disregard for whether a reasonable ground of suspicion existed, supported by the circumstances, which would lead a reasonably prudent person to believe that Plaintiff had committed a crime.
79. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** initiated a prosecution against Plaintiff **JOHN PERKINS**.
80. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** caused Plaintiff to be maliciously prosecuted without any probable cause, without reasonable suspicion, without any proper claims, without any right or authority to do so, illegally and with malice.
81. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process and intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of their misconduct.
82. Defendants acted with intent to do harm to Plaintiff without excuse or justification.
83. The legal process was terminated in favor of Plaintiff.
84. A timely Notice of Claim was filed with the City of New York.
85. **THE CITY OF NEW YORK** is also responsible for the State Claim of Malicious prosecution based on the theory of *respondeat superior*.¹
86. It was obvious in this situation that based on the totality of circumstances, there was no probable

¹ In addition to being responsible under the theory of *Monell* Liability.

cause to continue and even if there was probable cause to support the arrest (and Plaintiff does not believe there was), the evidence surfaced once Plaintiff identified himself and/or went further to prove his identity before being transported away from the scene.

87. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** lacked probable cause to believe the proceeding could succeed.

88. In fact, no probable cause existed to support a conviction and thus, actual malice by Defendants may additionally be inferred by the lack thereof.

89. The charges were ultimately terminated in favor of Plaintiff **JOHN PERKINS**.

90. Defendants were at all times aware that the dealership and its agents, employees and/or representatives had made a clerical error with the paperwork.

91. Defendants nonetheless instituted a criminal case against Plaintiff **JOHN PERKINS** for an improper purpose – namely to correct an error in the paperwork made by the dealership itself.

92. Defendants continued the malicious prosecution of Plaintiff **JOHN PERKINS** even after he had been arrested.

93. Defendants' failure to provide the necessary parties with a copy of the purchase information and letter explaining the clerical error from the dealership was done intentionally and maliciously to mislead the Honorable Criminal Court.

94. As a result of the foregoing, Plaintiff **JOHN PERKINS** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

95. Plaintiff **JOHN PERKINS** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

96. There was no probable cause for the arrest. The Plaintiff himself called the police. The Plaintiff

identified who he was at the scene. The Plaintiff had proof of his identity. The Plaintiff was wounded. The Defendants did not investigate even the most minimal amount to ascertain the facts of the situation.

97. By the actions described above, Defendant **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
98. A timely Notice of Claim was filed on behalf of Plaintiff.
99. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
100. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY AND ASSAULT

101. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
102. A timely Notice of Claim was filed by Plaintiff.
103. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
104. Defendant **THE CITY OF NEW YORK** is vicariously liable to Plaintiff for the individual Defendant's **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4**, common tort of battery and assault via the principle of *respondeat superior* and that New

- York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
105. Defendants committed a battery on Plaintiff as described above, while in custody; including but not limited to placing Plaintiff in handcuffs.
106. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
107. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
108. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions
109. The act of denying proper attention and medical treatment also amounted to a battery.
110. The act of ignoring the medical representatives' directives and denying proper medical treatment amounted to a battery.
111. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer physical and emotional injury and that he was otherwise damaged.
112. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

113. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
114. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and

trained Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** and its employees.

115. A timely Notice of Claim was filed by Plaintiff.
116. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

117. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
118. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
119. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS
(Violations of 42 USC § 1983, The Due Process Clause of the United States Constitution, the 14th Amendment, the New York State Constitution)

120. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.

121. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
122. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
123. Plaintiff was denied the minimal civilized measures of life's necessities.
124. Plaintiff was exposed to unusable toilets, poor sanitation, infestation, inadequate nutrition, requests for medical attention, and other unacceptable and inhumane scenarios while imprisoned at the hands of Defendants.
125. Plaintiff was denied medical attention.
126. Plaintiff's need for medical attention was delayed.
127. Plaintiff's conditions of confinement were unconstitutional.
128. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of New York law, rules and regulations.
129. The denial of medical attention and deliberate indifference to Plaintiff's medical needs in and of itself violate the Due Process Clause of the 14th Amendment.
130. Defendants disregarded the risk of harm to Plaintiff while he was a pretrial detainee.
131. The individual defendants issued legal process to place Plaintiff under arrest. On or about December 3, 2015, Defendants did, with actual malice, compose and swear out a false criminal complaint against Plaintiff and instituted the criminal case against Plaintiff. There was intent to do harm without justification in that even after learning about the clerical error; the criminal case was continued against Plaintiff. The use of process was in a manner to obtain a collateral objective detailed *infra* in Plaintiff's claim for *Monell* Liability.²

² "A claim to recover damages for abuse of process cannot be based on the mere commencement of an action by summons and complaint, without unlawful interference with person or property" (*Island Fed. Credit Union v. Smith*, 60 A.D.3d 730, 875 N.Y.S.2d 198). All three elements must be established in order to have a cause of action for abuse of process (see *id.*; see also *Mago v. Singh*, 47 A.D.3d 772, 851 N.Y.S.2d 593 [a counterclaim failed because it failed to allege "any actual misuse of the process to obtain an end outside its proper scope"])). In order for a party to bring a claim for abuse of process, three elements must be met: (1) there must be "regularly issued process, either civil or criminal;" (2) there must be "an intent to

132. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A ELEVENTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK
CLAIM FOR *MONELL* LIABILITY

133. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
134. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department, department of correction and through Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
135. At all times material to their complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN DOE #1-4** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
136. Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **THE CITY OF NEW YORK, POLICE OFFICER MICHAEL BIRCH (SHIELD #1724), SERGEANT GOLDEN DERRICK and POLICE OFFICERS JOHN**

do harm without excuse or justification;" and (3) there is a "use of the process in a perverted manner to obtain a collateral

DOE #1-4 being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. These are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

137. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and Police Officers and defendant **THE CITY OF NEW YORK**, including but not limited to the NYPD.
138. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of **THE CITY OF NEW YORK's** NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the correction officers come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.

objective" (Curiano v. Suozzi, 63 N.Y.2d 113, 480 N.Y.S.2d 466, 469 N.E.2d 1324).

139. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
140. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.
141. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the NYPD, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
142. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff without probable cause and then kept him in unsanitary and inhuman conditions.
143. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
144. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW**

YORK's wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their employees, agents and representatives of NYPD.

145. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.
146. In this case, there was: Police withholding evidence and/or misrepresenting or falsifying evidence; overall inadequate police work and inadequate prosecutorial work-up of the case; and permitting and/or enforcing false arrest and placing Plaintiff in unsafe and unconstitutional conditions of confinement.
147. The acts complained of were carried out by the aforementioned defendants in their capacities as officers pursuant to customs, policies, usages, practices, procedures and rules of the City, NYPD, all under the supervision of higher-ranking representatives, employees and/or agents of the NYPD.
148. The aforementioned customs, practices, procedures and rules of the City and NYPD include, but are not limited to: 1) arresting persons known to be innocent in order to meet "productivity goals"; 2) falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals; 3) failing to supervise, train, instruct and discipline police officers thereby encouraging their misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers' jurisdiction; 4) discouraging police officers from reporting the corrupt or unlawful acts of other officers; 5) retaliating against officers who report police misconduct; and 6) failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented with proper supervision.
149. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of City and NYPD to take appropriate remedial action amounted to

deliberate indifference to the constitutional rights of persons with whom the police come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.

150. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented by the following civil rights actions and parallel prosecutions of police officers:

a) Colon v. City of New York, 9-CV-0008 (JBW)(E.D.N.Y) (in an Order dated November 29, 2009 denying the City's motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issued were and prosecuted for falsifying evidence, the Honorable Jack B. Weinstein wrote:

'Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration— through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.'

b) McMillan v. City of New York, 04-cv-3990 (FB)(RML) (E.D.N.Y.)(officers fabricated evidence against an African-American man in Kings County and initiated drug charges against him, despite an absence of an quantum of suspicion);

c) Richardson v. City of New York, 02-CV-3651 (JG)(CLP) (E.D.N.Y.)(officers fabricated evidence including knowingly false sworn complaints, against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);

151. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints or otherwise falsifying or fabricating evidence, are further evidenced, inter alia, by the following:

a) Morgan Cloud, *The Dirty Little Secret*, 43 EMORY L.J. 1311, 1311-12 (1994) ("Judges, prosecutors, defense lawyers, and repeat offenders all know that police officers lie under oath."); Jerome H. Skolnick, *Deception by Police*, CRIM. JUST. ETHICS, Summer/Fall 1982, at 40, 42

(concluding that police “systematic[ally]” perjure themselves to achieve convictions); ALAN M. DERSHOWITZ, *THE ABUSE EXCUSE* 233 (Hachette Book Group 1994) (suggesting that “recent disclosures about rampant police perjury cannot possibly come as any surprise” to those who have practiced criminal law in state or federal courts); ALAN M. DERSHOWITZ, *THE BEST DEFENSE* xxi-xxii (Random House 1983) (“Almost all police lie about whether they violated the Constitution in order to convict guilty defendants.”); Deborah Young, *Unnecessary Evil: Police Lying in Interrogations*, 28 CONN. L. REV. 425, 427 (1996) (asserting that “the reported cases of police lying represent only a fraction of the actual cases in which police lying occurred”); David Kocieniewski, *Perjury Dividend-A Special Report*, N.Y. TIMES, Jan.5,1997, at A1 (noting that according to one New York police officer, “lying under oath was standard procedure”); *Lie Detectors Could Curb Police Perjury*, USA TODAY, Aug. 1, 1996, (Magazine), at 13 (“[M]any experienced trial lawyers have said they believe police officers frequently lie on the stand.”); Joseph D. McNamara, *Has the Drug War created an Officer Liars' Club?*, L.A. TIMES, Feb. 11, 1996, at M1 (noting recent perjury scandals have surfaced in police departments in Los Angeles, Boston, New Orleans, San Francisco, Denver, New York, and other large cities; and stating “[H]undreds of thousands of law-enforcement officers commit felony perjury every year testifying about drug arrests.”).

b) The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their superiors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.¹ {...} What breeds this tolerance is deep-rooted perception among many officers of all ranks within the Department that there is nothing really wrong with compromising the facts to fight crime in the real world. Simply put, despite devastating consequences of police falsifications, there is a persistent belief among officers that it is necessary and justified, even if it is unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get the suspected criminal off the streets. This is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.” See, Mollen Commission Report pgs 36-41.

152. The existence of the aforesaid unconstitutional customs and policies, specifically with regard to "productivity goals," may be further inferred from the following: Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set "productivity goals."³
153. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to

³ Jim Hoffer NYPD Officer claims pressure to make arrests WABC-TV Eyewitness News, March 22 2010, available at <http://abclocal.go.com/Wabc/story?section=news/investigators&id=73053S6> ("Police Officers like others who receive compensation are provided productivity goals and they are expected to work").

the failure to supervise, train, instruct, and discipline police officers, encouraging their misconduct, and exhibiting deliberate indifference towards the constitutional rights of persons with whom officers come into contact are further evidenced, inter alia, by the following:

a) In response to the Honorable Judge Weinstein's ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noticed a "widespread... custom or policy by the city approving illegal conduct" such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."

b) Regarding Defendant City's tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct. When it does, however, Commissioner Kelly controls whether the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than 4% each year between 2002 and 2006, to 35% in 2007, and approximately 30% in 2008. Alarming, the NYPD has refused to prosecute 40% of the cases sent to it by the CCRB in 2009. As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007. Substantiated complaints of excessive force against civilians accounted for more than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% of cases dropped in 2008.⁴

154. The existence of the above-described de facto unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and defendant **THE CITY OF NEW YORK**, including without limitation, the Police Commissioner.
155. All of the foregoing acts by defendants deprived Plaintiff of his federally protected rights, including, but limited to, the constitutional rights enumerated herein.
156. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
157. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and

⁴ Daily News, Editorial: City Leaders Must Get Serious About Policing the Police, August 20, 2008.

discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD and to require compliance with the Constitution and laws of the United States.

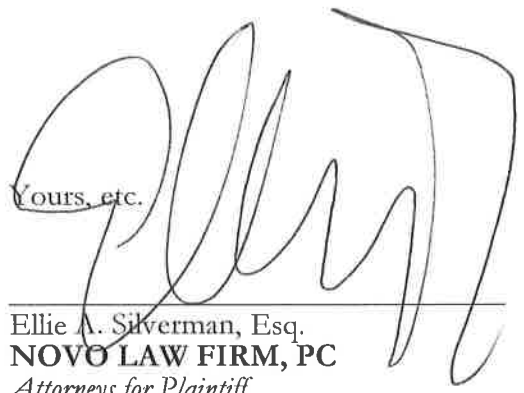
158. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the Commissioner, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
159. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff, medicate and confine him thus, making blatant violations of Plaintiff's constitutional rights.
160. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
161. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their agents, employees, or representatives.
162. There is a clear causal connection between the actions of **THE CITY OF NEW YORK** and the

- constitutional violations in this case. Here, **THE CITY OF NEW YORK** caused and is implicated in the constitutional violations and thus, should be held liable for the unconstitutional actions taken by the police officers.
163. Here, it is clear that **THE CITY OF NEW YORK** took action by their hiring and retention, which is sufficient to expose them to liability. *Amnesty America v. Town of West Hartford*, 361 F3d 113, 125 (2d Cir. 2004).
164. Upon information and belief, **THE CITY OF NEW YORK** was on notice that these policies were being unconstitutionally applied by inadequately trained medical staff and consciously has chosen not to train them or hire staff more adequate. *City of Canton, Ohio v. Harris*, 489 US 378 at 387.
165. By being aware of the medical staff's unconstitutional actions and consciously ignoring them, this in turn can mean that **THE CITY OF NEW YORK** ratified the defendants' actions. *See, Sorlucco v. New York City Police Dept.*, 971 F2d 864, 870-871 (2d Cir. 1992) (municipality lies where the subordinate's misconduct is "so manifest, as to imply the constructive acquiescence of senior policymaking officials").
166. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff **JOHN PERKINS** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
December 2, 2016

Yours, etc.



Ellie A. Silverman, Esq.
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Attorneys for Plaintiff
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Our File No. 15-5875

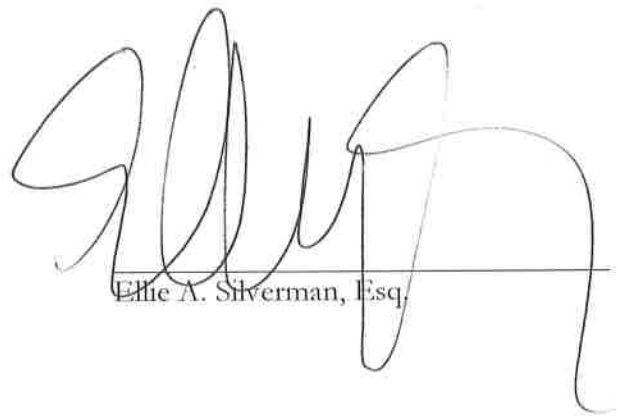
ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **NOVO LAW FIRM, PC**, attorneys of record for Plaintiff **JOHN PERKINS**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
 December 2, 2016



Ellie A. Silverman, Esq.

Index No.: _____/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JOHN PERKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK AND POLICE OFFICERS JOHN DOE #1-6 (the name "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.

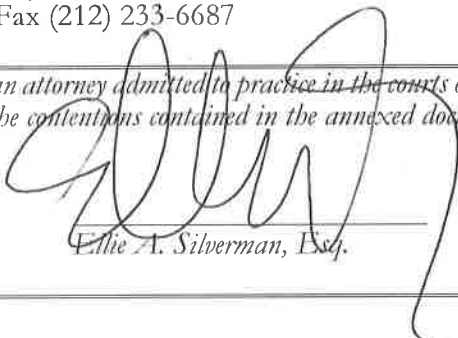
Attorneys for Plaintiff

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Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 2, 2016



Ellie A. Silverman, Esq.

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007
2. **POLICE OFFICER MICHAEL BIRCH (SHIELD #1724)**, NYPD, 120th Precinct, 78 Richmond Terrace, Staten Island, New York 10301
3. **SERGEANT GOLDEN DERRICK**, NYPD, 120th Precinct, 78 Richmond Terrace, Staten Island, New York 10301